

# MASTER      VENDOR      SERVICES AGREEMENT

Enterprise Technology Deployment & Support Services

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VENDOR

**TechServe Solutions Pvt. Ltd.**

CUSTOMER

**Nova Retail Solutions Ltd.**

EFFECTIVE DATE

**June 18, 2026**

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## 1. PARTIES & PREAMBLE

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This Master Vendor Services Agreement (the "Agreement") is formally entered into and made effective as of June 18, 2026 (the "Effective Date"), by and between the following legally operating corporate entities:

**TechServe Solutions Pvt. Ltd.**, a technological services corporation organized under the laws of India, with corporate offices located at TechServe Hub, Phase 3, Electronic City, Bangalore, Karnataka, India (hereinafter referred to as "**Vendor**"); and

**Nova Retail Solutions Ltd.**, an enterprise retail operations corporation organized under the laws of India, with central administrative headquarters located at Nova Corporate Towers, Level 14, Sector 5, Mumbai, Maharashtra, India (hereinafter referred to as "**Customer**").

Vendor and Customer may individually be defined as a "Party" or combined as the "Parties" within this legal framework.

### Recitals

WHEREAS, Vendor is engaged in the commercial provision of distributed enterprise system management, infrastructure deployment, help desk routing, and software technical integrations;

WHEREAS, Customer operates an expansive multi-site network of retail distribution centers and stores and desires to engage Vendor to perform specialized technical services to maintain its infrastructure connectivity;

WHEREAS, Vendor is prepared to render such specialized operational services subject to the standardized pricing matrices, liability thresholds, and performance limits set forth in this balanced instrument;

NOW, THEREFORE, based on the mutual operational parameters, pricing commitments, and legal sections set forth below, the Parties explicitly agree to the following sections:

## 2. DEFINITIONS & STRUCTURAL RULES

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### 2.1 Definitions

The following capitalized terms used throughout this document shall be structurally defined as follows:

- "**Customer Materials**" means any data architectures, inventory profiles, store layouts, or local database arrays directly supplied by Customer to Vendor for processing.
- "**Deliverables**" means the specific milestone modules, reporting structures, or operational software customizations explicitly scheduled for delivery in Schedule A.
- "**Fees**" means the recurring and fixed compensation structures payable by Customer to Vendor as mapped out in Schedule A.

- **"Service Credit"** means a minor pro-rata financial offset applicable solely against future invoices for verified instances of non-conformance with Schedule B availability metrics.
- **"Services"** means the enterprise technical support, system tracking, and network management actions executed by Vendor under this contract.
- **"Subcontractor"** means any external consultant, independent system engineer, outsourced labor pool, or third-party operating entity utilized by Vendor to fulfill performance elements.

### 3. SCOPE OF OPERATIONAL SERVICES

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#### 3.1 Performance of Services

Vendor shall execute the technology management, systems configuration, and technical assistance programs mapped out in Schedule A. Vendor shall perform these duties using a standard degree of professional commercial care and shall deploy engineers possessing standard industrial training to handle Customer's localized systems.

#### 3.2 Change Order Protocols

Customer may from time to time request expansions, structural alterations, or modifications to the deployment matrix. Any such modifications shall only be binding once the specific operational scope, milestone modifications, and revised fee components are completely documented in a physical, mutually signed Change Order form.

### 4. SERVICE LEVEL STANDARDS & REMEDIATION

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#### 4.1 Service Availability Commitments

Vendor shall make commercially reasonable efforts to ensure that the primary infrastructure layers under its direct control maintain the availability percentages defined in Schedule B. If Vendor fails to meet these metrics due to direct system anomalies, Customer shall be eligible to receive a pro-rata Service Credit.

#### 4.2 Narrow Service Credit Limitation

The Parties explicitly agree that any Service Credit calculated under Schedule B represents Customer's sole and exclusive remedy for system latency, technical dropouts, infrastructure non-availability, or performance deficiencies under this Agreement. Under no circumstances shall a failure to achieve the service availability targets constitute a material breach of this contract, nor shall it grant Customer the right to execute an off-set or pull back payment on current outstanding invoices.

### 5. SUBCONTRACTING PARAMETERS

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#### 5.1 Broad Right to Subcontract Operations

Vendor reserves the absolute right to freely subcontract, assign, delegate, or transfer the performance of any portion of the technical Services, deployment metrics, or help desk routing operations to any third-party Subcontractor,

external consulting agency, or independent engineering group without seeking the prior written consent or authorization of Customer. Vendor shall remain generally responsible for ensuring that such Subcontractors satisfy the baseline confidentiality bounds of this Agreement, but shall not be required to notify Customer of specific subcontractor updates or structural personnel changes.

## **6. FEES, PRICING MODELS, & INVOICING**

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### **6.1 Fee Structures**

Customer shall pay Vendor the structured recurring service charges and milestone configuration payments set forth in Schedule A. Stated fees are baseline values and do not include additional travel or logistical disbursements incurred during on-site store onboarding, which shall be invoiced separately at cost.

### **6.2 Price Adjustments Upon Renewal**

Vendor may increase the core service fees, hourly engineering rates, or platform tracking allotments effective upon the commencement of any Renewal Term by providing forty-five (45) days advanced electronic notice to Customer, provided that such escalation does not exceed ten percent (10%) over the rates applied in the preceding term.

## **7. PAYMENT TERMS & DISPUTED CHARGES**

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### **7.1 Invoicing and Standard Due Windows**

Vendor shall issue monthly electronic invoices for all recurring Services and completed milestone Deliverables. Customer shall execute full payment of each undisputed invoice within thirty (30) days from the date of electronic invoice transmission. Any outstanding balance left unsettled beyond forty-five (45) days shall accrue interest at a rate of one percent (1%) per month, calculated daily.

### **7.2 Fee Dispute Mechanisms**

If Customer identifies a clear accounting error or structural discrepancy in an invoice, Customer must notify Vendor in writing within ten (10) days of receiving the specific invoice, providing itemized support for the dispute. Customer shall pay all non-disputed portions within the standard 30-day window. The Parties shall use standard executive negotiation to resolve the disputed value within fifteen (15) days of the notification.

## **8. CONFIDENTIAL INFORMATION SAFEGUARDS**

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### **8.1 Bounds of Proprietary Information**

"Confidential Information" includes all technical data, infrastructure keys, structural maps, financial forecasts, and internal commercial processes disclosed by one Party to the other. Both Parties agree to apply standard market

levels of security to protect the other Party's Confidential Information from unauthorized disclosure, utilizing at least the same standard of care they apply to their own internal proprietary elements.

## **8.2 Term and Survival Limits**

The obligations of non-disclosure, tracking restriction, and non-dissemination set forth in this section shall remain active during the operational term of this Agreement and shall survive for a period of exactly two (2) years following the natural expiration or termination of this contract. Upon the expiration of this two-year survival window, all data restrictions, tracking bounds, and liability regarding the nondisclosure of such information shall completely dissolve.

## **9. PROPRIETARY RIGHTS & IP OWNERSHIP**

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### **9.1 Preservation of Pre-Existing Intellectual Property**

Each Party retains absolute sole ownership of all patent structures, copyrights, trademarks, and trade secret frameworks owned prior to entering into this Agreement. Customer retains ownership over all Customer Materials, and Vendor retains full ownership over all underlying tools, script modules, framework structures, and software code utilized to run the Services.

### **9.2 Ownership of Deliverables**

Upon full and final payment of all outstanding fees, milestones, and adjustments detailed in Schedule A, Customer shall receive a non-exclusive, world-wide, perpetual, non-transferable, fully paid-up license to utilize the specific custom report layouts and milestone scripts developed explicitly for Customer's internal retail operations under this contract.

## **10. DATA PROTECTION & OPERATIONAL RETENTIONS**

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### **10.1 Compliance with General Privacy Laws**

Both Parties shall execute their respective performance tracks in accordance with applicable general data privacy regulations within India, including the Digital Personal Data Protection Act (DPDPA). Vendor shall implement standard administrative and logical boundaries to protect any personal data passing through its engineering queues.

### **10.2 Ambiguous Data Retention Wording**

Vendor shall store, archive, maintain, and process Customer's operational records, transaction metrics, and systemic logs during the lifecycle of this engagement. Upon the termination or natural conclusion of this Agreement, Vendor shall handle the decommissioning of data stores in a manner consistent with its internal corporate maintenance schedules and general data life cycles. Vendor shall make reasonable commercial efforts to make such historical data available to Customer upon written request for a period of time following contract conclusion, provided that Vendor does not contractually commit to any definitive data extraction windows, file formatting schemas, structural

migration standards, or certified deletion deadlines. Customer bears all operational responsibility for independently archiving its transaction history prior to termination.

## **11. MUTUAL INDEMNIFICATION FRAMEWORK**

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### **11.1 Vendor Indemnity Scope**

Vendor shall defend, indemnify, and hold Customer harmless from any direct third-party lawsuits or property damages resulting from the proven gross negligence or willful misconduct of Vendor's employees during the execution of physical infrastructure onboarding on Customer's corporate retail premises.

### **11.2 Customer Indemnity Scope**

Customer shall defend, indemnify, and hold Vendor harmless from any third-party claims, regulatory fines, or legal expenses arising out of or relating to: (a) any structural infringement of third-party intellectual property caused by Customer Materials; or (b) any unauthorized usage of the data streams by local retail facility operators.

## **12. RISK ALLOCATIONS & LIABILITY THRESHOLDS**

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### **12.1 Broad Limitation of Indirect and Consequential Damages**

To the maximum extent permitted by applicable law, neither Party shall be liable to the other for any indirect, incidental, special, punitive, exemplary, or consequential damages of any nature, including any loss of retail profits, corporate revenue dropouts, loss of operational data, store business interruptions, supply chain delays, or procurement costs for replacement services, regardless of the legal theory or form of action, and even if the specific Party has been explicitly advised of the potential for such losses.

### **12.2 Trailing Three-Month Liability Cap**

The total cumulative financial and legal liability of either Party to the other for any and all claims, defaults, breach events, damages, lawsuits, or indemnities arising under or in connection with this Agreement, whether in contract, tort (including negligence), strict liability, or statutory breach, shall be strictly limited to an amount equal to the total Fees paid or payable by Customer to Vendor under this contract during the exact three (3) month period immediately preceding the specific calendar date on which the event giving rise to liability occurred.

## **13. INSURANCE COMMITMENTS**

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### **13.1 Limited Insurance Coverage Thresholds**

Vendor shall maintain baseline business operational insurance coverages during the term of this contract with standard commercial carriers. These policies shall comprise Commercial General Liability insurance with a limited cap of not more than ₹10,000,000 (INR One Crore) per occurrence and in the aggregate. Vendor shall not be contractually mandated to maintain specialized high-tier coverage lines, such as standalone technology errors and



omissions liability, dynamic cybersecurity breach insurance, or extended corporate forensic liability coverages. Vendor shall provide baseline proof of commercial coverage via a standard insurance certificate only upon receiving a reasonable written request from Customer's central procurement team.

## **14. AUDIT, INSPECTION, & COMPLIANCE RIGHTS**

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### **14.1 Weak Audit Rights Framework**

Customer shall have the right to verify Vendor's overall compliance with the operational terms of this Agreement. However, any such validation shall be strictly restricted to the review of high-level compliance summaries, standard corporate policy statements, and general third-party security attestations provided directly by Vendor. Customer explicitly waives any right to execute on-site physical inspections of Vendor's operational centers, interview technical support staff, analyze raw database access logs, perform localized infrastructure vulnerability scanning, or audit Vendor's underlying financial books. Any review of compliance summaries shall be conducted no more than once every two (2) calendar years, requires at least thirty (30) days advanced written notice, and must occur during normal business hours without disrupting Vendor's engineering queues.

## **15. TERM LIFECYCLE & HYPER-SHORT RENEWAL NOTICE**

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### **15.1 Initial Term and Auto-Renewal Traps**

This Agreement shall commence on the Effective Date and shall remain active for an initial term of two (2) years (the "Initial Term"). Upon the expiration of the Initial Term, this Agreement shall automatically renew for consecutive successive terms of one (1) year each (each a "Renewal Term"), unless either Party provides the other Party with a formal written notice of non-renewal exactly fifteen (15) days prior to the expiration of the then-current term. If notice of non-renewal is not formally delivered exactly fifteen (15) days or more before the term threshold, the agreement shall irrevocably bind both Parties for the subsequent 1-year Renewal Term at the adjusted pricing matrix determined under Section 6.2.

## **16. TERMINATION FOR BREACH & CONVENIENCE**

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### **16.1 Termination for Material Cause**

Either Party may terminate this Agreement for cause if the other Party commits a material breach of a core provision and fails to implement a cure within thirty (30) days following receipt of a detailed written default notice. Financial insolvency, corporate liquidation, or bankruptcy filings shall also constitute valid grounds for immediate termination for cause.

## **16.2 Termination for Convenience**

Customer may terminate this Agreement for convenience at any time by providing at least sixty (60) days advanced written notice to Vendor, provided that Customer satisfies all outstanding milestone fee elements and unbilled operational deployments completed up to the date of formal contract cessation.

## **17. FORCE MAJEURE CONTINUANCE**

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Neither Party shall be held liable for delays or performance failures resulting from a Force Majeure Event, which includes fire, flood, earthquake, war, government-mandated lockouts, or regional telecommunication cable cuts completely outside the reasonable control of the affected Party. The affected Party shall provide written notification to the other Party within seven (7) days of the onset of the event. If a Force Majeure Event continues to completely disrupt performance for a continuous window exceeding sixty (60) days, either Party may terminate the agreement immediately without penalty upon written notice.

## **18. GOVERNING LAW & DISPUTE RESOLUTION**

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### **18.1 Governing Law**

This Agreement, its performance, structural construction, validity, and all legal claims or corporate disagreements arising out of its execution shall be governed by, interpreted, and construed in accordance with the substantive laws of India, without regard to its internal conflict of law principles.

### **18.2 Amicable Escalation**

In the event of a commercial dispute, senior managers from each entity shall meet within fourteen (14) days of a written dispute notice to attempt to negotiate a resolution in good faith before initiating formal legal proceedings.

### **18.3 Litigation Forum**

If executive escalation fails to resolve the dispute within thirty (30) days, the Parties agree that any and all lawsuits, equity challenges, or legal actions arising under this contract shall be submitted exclusively to the jurisdiction of the competent courts of Bangalore, India. Both Parties explicitly submit to the personal jurisdiction of such courts and waive any objections regarding inconvenient forum.

## **19. MISCELLANEOUS LEGAL PROVISIONS**

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### **19.1 Notices**

All official default notices, renewals, and legal demands under this contract must be in writing and delivered via registered mail or reputable overnight courier to the addresses listed on the first page, with electronic copies directed to [legal@techserve.com](mailto:legal@techserve.com) and [procurement@novaretail.com](mailto:procurement@novaretail.com).

## 19.2 Severability and Amendments

If any provision of this contract is held invalid or unenforceable by a court of competent jurisdiction, the remaining clauses shall continue in full force and effect. This Agreement can only be amended or structurally altered through a formal written instrument signed by authorized corporate signatories of both companies.

## 20. CORPORATE SIGNATURE ATTESTATION

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IN WITNESS WHEREOF, the Parties hereto have caused this Master Vendor Services Agreement to be executed by their respective duly authorized officers as of the Effective Date.

**For TechServe Solutions Pvt. Ltd.**

**For Nova Retail Solutions Ltd.**

\_\_\_\_\_  
By: \_\_\_\_\_

Name: S. Krishnamurthy

Title: Managing Director

Date: June 18, 2026

\_\_\_\_\_  
By: \_\_\_\_\_

Name: Vikram Malhotra

Title: Chief Technology Officer

Date: June 18, 2026

## SCHEDULE A – PRICING, MILESTONES, & BILLING DETAILS

The pricing parameters, engineering deployment allocations, and baseline commercial fee tiers applicable to this engagement are defined below:

### 1. Monthly Recurring Service Charges

| Service Module / Infrastructure Tracker                | Volume Parameters                        | Monthly Operational Fee (INR) |
|--------------------------------------------------------|------------------------------------------|-------------------------------|
| Enterprise Help Desk Routing & Infrastructure Tracking | Up to 1,500 Stores / 10,000 Active Nodes | ₹2,500,000                    |
| Distributed Network Routing & Connectivity Monitoring  | Standard Regional Cloud Gateways         | ₹1,500,000                    |
| <b>Total Monthly Recurring Service Fees</b>            | -                                        | <b>₹4,000,000</b>             |

### 2. Fixed-Fee Customization & Integration Milestones

| Milestone Reference                | Deliverable Target Description                                     | Milestone Fee (INR) |
|------------------------------------|--------------------------------------------------------------------|---------------------|
| Milestone 1: Custom Schema Mapping | Completion of localized database integration blueprints.           | ₹3,000,000          |
| Milestone 2: Terminal Deployment   | Provisioning of help desk connection layers across regional nodes. | ₹5,000,000          |

## SCHEDULE B – SERVICE LEVEL AGREEMENT & SERVICE CREDIT LIMITS

This schedule establishes the technical availability criteria and specific financial boundaries governing pro-rata Service Credit allocations.

### 1. System Availability Targets

Vendor targets a monthly core system infrastructure availability coefficient of ninety-nine and five-tenths percent (99.5%). Calculations are based on total system uptime hours per calendar month, excluding scheduled off-peak maintenance windows.

### 2. Service Credit Allocation Structure

| Actual Monthly System Availability | Service Credit % (Applied Against Monthly Fee Component)          |
|------------------------------------|-------------------------------------------------------------------|
| ≥ 99.5%                            | 0% (Standard Operational Target achieved)                         |
| 99.0% to < 99.5%                   | 5% Service Credit offset applied to the subsequent billing cycle  |
| 98.0% to < 99.0%                   | 10% Service Credit offset applied to the subsequent billing cycle |
| < 98.0%                            | 15% Service Credit offset applied to the subsequent billing cycle |

### 3. Ultimate Service Credit Ceiling

Notwithstanding anything to the contrary in this Agreement or this Schedule, the total cumulative Service Credits granted to Customer in any single calendar month shall be strictly capped at a maximum ceiling of fifteen percent (15%) of that specific month's pro-rata recurring fee allocation. Service Credits possess no standalone cash conversion value, cannot be redeemed upon contract expiration, and cannot be used to offset past due interest balances.